

S E R V E D

November 28, 2017

FEDERAL MARITIME COMMISSION

**FEDERAL MARITIME COMMISSION**

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**DOCKET NO. 17-03**

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**ANTONIO EGBERTO CARNEIRO LIMA**

**v.**

**FASTWAY MOVING AND STORAGE, INC., d/b/a DREAM CARGO, d/b/a FASTWAY,  
d/b/a FASTWAY MOVING; FASTWAY MOVING AND SERVICES CORP.;  
FASTWAY MOVING AND TRADING CORP.; ABREU LOPES TRANSPORTES LTDA;  
and ABREU LOGISTICS USA, LLC d/b/a ABREU LOGISTICS & CARGO**

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**SECOND ORDER TO SHOW CAUSE**

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An order for all five Respondents to show cause and order for Complainant to show cause ("OTSC") was issued on August 1, 2017, granting Respondents additional time to respond to the complaint and ordering Respondents to show cause why a decision should not be entered against them. Respondents were warned that if they failed to respond to the order to show cause, a default decision could be entered against them. OTSC at 2. In addition, Complainant was ordered to file a motion for default. OTSC at 3. Both Complainant and Respondents failed to respond to the order to show cause.

An additional address has been identified for Respondents in a 2017 Florida Limited Liability Company report filed with the Florida Secretary of State. In an abundance of caution, this second order to show cause and copies of the previous order to show cause, notice of filing of complaint and assignment, and the complainant will be sent to this new address, 1100 South Federal Hwy., Suite 409, Deerfield Beach, FL, 33441, as well as to the other addresses on record. Respondents will be given until December 18, 2017, to respond to this proceeding by responding to the complaint and filing a document explaining why no response has been filed previously and why a decision on default should not be entered against them.

Failure of Respondents to respond by December 18, 2017, will result in a default decision against Respondents, potentially in excess of \$129,872.22 as sought by Complainants. Pursuant to Commission Rule 502.62(b)(6):

Failure of a party to file an answer to a complaint, counterclaim, crossclaim, or third-party complaint within the time provided will be deemed to constitute a waiver of that party's right to appear and contest the allegations of the complaint, counterclaim, crossclaim, or third-party complaint to which it has not filed an answer and to authorize the presiding officer to enter an initial decision on default as provided for in 46 CFR 502.65. Well pleaded factual allegations in the complaint not answered or addressed will be deemed to be admitted.

46 C.F.R. § 502.62(b)(6). Moreover, when a party is found to be in default, "the Commission or the presiding officer may issue a decision on default upon consideration of the record, including the complaint." 46 C.F.R. § 502.65(b).

Complainant is encouraged to also respond by filing a motion for default addressing the issues raised in the OTSC. This information will be helpful in making a final determination in this proceeding. Failure to respond may result in Respondents, allegations, or the proceeding being dismissed with prejudice for failure to prosecute. Any response by the Complainant should also be filed by December 18, 2017.

For the reasons stated above, it is hereby

**ORDERED** that on or before December 18, 2017, Respondents file their answer or respond to the complaint and respond to the order to show cause by explaining why no response has been filed previously and why a decision on default should not be entered against them. It is further ordered that Complainant may file a motion for default or provide additional information by December 18, 2017.

A handwritten signature in cursive script, reading "Erin M. Wirth", is written over a horizontal line.

Erin M. Wirth  
Administrative Law Judge